

Vs. Manager (Admn) TEVTA, etc.

Through this constitutional petition, the petitioner has called in question the order dated 03.06.2016 passed by Deputy Manager (Admn.) TEVTA, 96-H, Gulberg-II, Lahore (respondent No.2), whereby the petitioner has been transferred from Govt. Vocational Training Institute (W), G.T.Road, Mian Channu, District Khanewal to Govt. College of Technology, Burewala, District Vehari.

2. Brief facts of the case as stated are that the petitioner joined Government Vocational Training Institute as Chowkidar (BPS-02) in the year 2004 on contract basis. His services were regularized on 26.04.2006. Vide order dated 03.06.2016, the respondent No.2 transferred the petitioner from Govt. Vocational Training Institute (W), G.T.Road, Mian Channu, District Khanewal to Govt. College of

Technology, Burewala, District Vehari, against a vacant post of Chowkidar. The said order is under challenge through this constitutional petition.

3. The counsel for the petitioner has argued that as per wedlock policy, the petitioner is entitled to remain posted in Mian Channu as his wife is a PTC Teacher and serving in Mian Channu. Besides, the petitioner is a low paid employee and has been transferred far-away from his place of residence and the said transfer order is not in the public interest.

4. The counsel appearing on behalf of respondents states that the petitioner was transferred on the basis of some complaints submitted by the staff and the students of the institute. The petitioner was earlier transferred from Govt. Vocational Training Institute (Women), Mian Chabbu to Govt. College Commerce Mian Channu vide order dated 01.04.2006 on the basis of some complaints. In the year 2011, he managed his transfer back in Government Vocational Training Institute (Women), Mian Channu. Again in May 2016 on the basis of complaint, a probe was conducted against the petitioner wherein the probe officer recommend the transfer of the petitioner to any male institute in the interest of the institute, female staff and female students in order to maintain the sanctity of

chaddar and *chaardevari*. The counsel for the respondents further argued that the petitioner was appointed in BS-01 and not in BS-02. The transfer orders are on administrative grounds and the petition is liable to be dismissed.

5. Heard. Record perused.

6. The petitioner was appointed as Chowkidar in the Government Vocational Training Institute (Women), Mian Channu. However, twice he has been transferred on administrative grounds due to some complaints. This Court would not like to comment on the veracity of the complaint, however, as the respondents have stated that probe officer had recommended that the petitioner be not placed as Chowkidar in any women institute, therefore, he has been transferred to the Government College of Technology, Burewala. Besides, it is stated that there is only one seat of Chowkidar available at previous place of posting at Mian Channu, which has been filled, therefore, he cannot be appointed in Mian Channu and the nearest post was available in District Burewala, where competent authority has posted him. Although, as per wedlock policy, husband and wife are entitled to be posted at the same station but this is not absolute principle of law and is subject to posting elsewhere if

not found practicable. The reference in this behalf is placed on Clause 17 of the Wedlock policy which may be reproduced as under:-

“Normally the competent authority should make an effort to post husband and wife, when both are Govt. Servants at one station unless administratively it is not practicable.”

7. Furthermore, the policy of TEVTA relating to transfer of posting is as under:-

“Three years mandatory stay at one station may be observed strictly except in case of administrative grounds.”

As the transfer has been made on administrative grounds and no other post is available in the previous institute and also there is recommendation of the probe officer not to post the petitioner in any women institution, without commenting upon the veracity of the afore-referred recommendation, this Court would not like to exercise its constitutional jurisdiction to set-aside the afore-referred order of transfer as constitutional petition is an equitable jurisdiction and no prejudice has been caused to the petitioner for being transfer from one institution to the other.

8. For what has been discussed above, this petition being devoid of any force stands **dismissed**.

(Muzamil Akhtar Shabir)
Judge